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CASE #	CASE NAME	HEARING NAME
CVME2506583	KOLSTAD VS CASA DEL REY MOBILE HOMES ESTATES, L.P.	MOTION TO BIFURCATE

Tentative Ruling: CONTINUED to 8/14/26.

2.

CASE #	CASE NAME	HEARING NAME
CVME2509966	NICHOLSON VS MMJ CONSTRUCTION INC.	DEMURRER

Tentative Ruling: SUSTAIN as to the first, second, fourth, and fifth causes of action. Overrule the demurrer as to the third cause of action. Thirty days leave to amend.

GRANT Nicholson's requests for judicial notice.

This is an employment action. Plaintiffs Bradley Nicholson, Christine Mascarena, and Jerry Dalton Edler filed the operative Complaint against Defendants MMJ Construction, Inc., Judy Lee Bailey-Savage, Brett Lee Baily, and Freedom Ranch & Rescue, Inc. alleging: (1) failure to pay prevailing wages; (2) failure to pay overtime; (3) failure to reimburse expenses; (4) failure to provide compliant rest breaks; (5) failure to provide compliant meal periods; and (6) unfair business practices.

Judy Lee Bailey-Savage then filed a Cross-Complaint against Bradley Nicholson. The court previously sustained a demurrer to the Cross-Complaint with leave to amend.¹ Bailey-Savage amended the pleading and the operative First Amended Cross-Complaint (FACC) alleges: (1) implied indemnity; (2) equitable indemnity; (3) breach of contract; (4) contribution; and (5) declaratory relief. The FACC alleges Bailey-Savage and Nicholson are both directors and officers of MMJ Construction, Inc. (MMJ). (FACC ¶¶1, 2.) Bailey-Savage alleges she is the owner and she entered into a verbal agreement with Nicholson to turn the company over to him. Bailey-Savage alleges during this transition time, Nicholson made decisions and performed actions as an office or director with the company, including hiring the other two plaintiffs as employees. (FACC ¶¶22-23.) The FACC also alleges Nicholson repudiated the agreement to take over the company by lying about his position with the company to the Division of Workers' Compensation Insurance after he totaled the company car and made a workers' compensation claim in which he denied being a principal of the company. (¶25.)

Nicholson brings the instant demurrer to the FACC. Nicholson argues that the deficiencies of the original Cross-Complaint remain. Nicholson argues the amendments made to the pleading do not save the remaining causes of action. Nicholson argues the statute of fraud bars the breach of contract claim. Nicholson argues the citations in the pleading do not support the causes of action.

¹ The Court sustained the demurrer with leave to amend as to the first, second, third, fifth, and sixth causes of action. The Court sustained the demurrer without leave to amend as to the fourth cause of action for breach of fiduciary duty. The FACC no longer contains a breach of fiduciary duty claim.